

25CV03491 Misty Dawn Hoover vs County of Santa Barbara et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-24

Motion: 1. Motion: Judgment on Pleadings; 2. Order to Show Cause: Dismissal

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv03491-1>

Source SHA-256: 1f3d067430648bfd498986912fec7d6421f6a2a0047a71c6d163c50f2ca99b6

Tentative Ruling: Misty Dawn Hoover vs County of Santa Barbara et al

Case Number

25CV03491

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/24/2026 - 10:00

Nature of Proceedings

1. Motion: Judgment on Pleadings; 2. Order to Show Cause: Dismissal

Tentative Ruling

Misty Dawn Hoover v. County of Santa Barbara, et al. (Judge Sterne)

Case No. 25CV03491

Hearing Date: August 24, 2026

HEARING: 1. Defendant County of Santa Barbara's Motion for Judgment on the Pleadings.

2. Order to Show Cause re: Why Matter Should not be Dismissed as to the Remaining Defendants.

ATTORNEYS: For Plaintiff Misty Dawn Hoover: Self-Represented

For Defendant County of Santa Barbara: Sara Bruckner

For Defendant City of Santa Barbara: Tom R. Shapiro, Delaney Satz

For Defendant State of California: Davis Ryan

TENTATIVE RULING:

Defendant County of Santa Barbara's Motion for Judgment on the Pleadings is granted without leave to amend.

The Order to Show Cause re: Why Matter Should not be Dismissed as to the Remaining Defendants is granted, without prejudice. The matter is dismissed without prejudice.

Background:

This action commenced on June 5, 2025, by the filing of the Judicial Council Form Complaint by plaintiff Misty Dawn Hoover (plaintiff) against the County of Santa Barbara (the "County"), the City of Santa Barbara (the "City"), and the State of California (the "State"), for (1) negligence, (2) premises liability, and (3) dangerous condition of public property.

As alleged in the complaint:

On January 11, 2025, plaintiff was on US-101 Southbound, near Mission Street, Santa Barbara, "when suddenly and without warning there was an unsafe road design and or condition, resulting in bodily injuries to Plaintiff." (Compl., ¶ L-1.)

The complaint gives almost no details as to what the "unsafe road design or condition" consists of. It merely states that plaintiff encountered the condition, was unable to avoid collision, and was injured. The government claims forms that are attached to the complaint as exhibits provide no additional information regarding the incident.

On October 28, 2025, the City answered the complaint with a general denial and four affirmative defenses.

On October 30, 2025, the State answered the complaint with a general denial and 27 affirmative defenses.

On October 31, 2025, the County answered the complaint with a general denial and 16 affirmative defenses. Among the affirmative defenses are failure to state a cause of action, and lack of ownership or control

On December 2, 2025, the City filed a motion for summary judgment, arguing that the City does not own, control, or maintain the location of the accident.

Plaintiff did not file opposition to the motion for summary judgment, nor did she appear at the hearing on the motion.

On March 16, 2026, the court granted the motion for summary judgment and, due to plaintiff's apparent abandonment of the case, set an order to show cause re: why the matter should not be dismissed as to the remaining defendants.

On April 17, 2026, the County filed the present motion for judgment on the pleadings arguing that the complaint, and documents that the court may take judicial notice of, disclose a complete defense to the action in that they prove the County does not own, maintain, or control the location of the accident.

Plaintiff has not filed opposition or any other response to the motion for judgment on the pleadings or the order to show cause re: dismissal.

Analysis:

The county requests that the court take judicial notice of the County's Public Works Department, Transportation Division maintained roadway section inventory, pursuant to Evidence Code section 452, subdivisions (g) and (h).

Judicial notice may be taken of: "Facts and propositions that are of such common knowledge within the territorial jurisdiction of the court that they cannot reasonably be the subject of dispute; and Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452, subds. (g), (h).)

"The trial court shall take judicial notice of any matter specified in Section 452 if a party requests it and:

"(a) Gives each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request; and

"(b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." (Evid. Code, § 453.)

" 'Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents.' " [Citation.] (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400.)

The court will take judicial notice of the document, which shows that US-101 is not owned, maintained, or controlled by the County.

Motion for Judgment on the Pleadings

A defendant may move for judgment on the pleadings if "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).)

"The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (Code Civ. Proc., § 438, subd. (d).)

"Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed." (Alameda County Waste Management Authority v. Waste Connections US, Inc. (2021) 67

Cal.App.5th 1162, 1174.)

"All properly pleaded, material facts are deemed true, but not contentions, deductions, or conclusions of fact or law; judicially noticeable matters may be considered. [Citations.]" (Kapsimallis v. Allstate Ins. Co. (2002) 104 Cal.App.4th 667, 672.)

General Negligence

"Except as otherwise provided by statute: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815, subd. (a).)

"In other words, direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles. [Citations.] As Zelig observed, quoting from an earlier case, " ' 'the intent of the [Tort Claims Act] is not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances....' " " [Citation.]" (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.)

Plaintiff has set forth no allegations or statutory authority, by way of the complaint, to permit an action against the County under a general negligence cause of action. As such, the cause of action fails to state a claim upon which relief may be granted.

Premises Liability and Dangerous Condition of Public Property

"Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

"(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

"(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." (Gov. Code, § 835.)

It is axiomatic that a preliminary condition of liability under Government Code section 835 is that the public entity own or control the property for any liability to be imposed.

" 'Property of a public entity' " and " 'public property' " mean real or personal property owned or controlled by the public entity. (Gov. Code, § 830, subd. (c), supra..) For liability to be imposed on a public entity for a dangerous condition of property, the entity must be in a position to protect against or warn of the hazard. (Gov. Code, § 835, subd. (b), supra..) Therefore, the crucial element is not ownership, but rather control." (Mamola v. State of California ex rel. Dept. of Transportation (1979) 94 Cal.App.3d 781, 788.)

The County has met its burden of proof that it has a complete defense to plaintiff's causes of action and that it is entitled to judgment on the pleadings as a matter of law. The County did not own or control any of the property that plaintiff contends constitutes a dangerous condition. Plaintiff has alleged nothing to refute that fact.

As the pleadings, and matters of which this court has taken judicial notice, disclose a complete defense to each of plaintiff's causes of action, the motion for judgment on the pleadings will be granted. As there is no possibility of plaintiff amending the complaint to allege a viable cause of action against the County for the alleged incident, leave to amend will be denied.

Order to Show Cause re: Dismissal

As noted above, on March 16, 2026, the court issued an Order to Show Cause re: why this action should not be dismissed as to the remaining defendants based on plaintiff apparently abandoning the case.

"It is the policy of the state that a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. Except as otherwise provided by statute or by rule of court adopted pursuant to statute, the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter." (Code Civ. Proc., § 583.130.)

"(a) The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.

(b) Dismissal shall be pursuant to the procedure and in accordance with the criteria prescribed by rules adopted by the Judicial Council." (Code Civ. Proc., § 583.410.)

A trial court does not abuse its discretion by ordering dismissal of a civil action for plaintiff's failure to appear at case management conferences and other hearings. (see *California Casualty Indemnity Ins. Co. v. Mendoza* (1995) 36 Cal.App.4th 678.)

The Santa Barbara County Superior Court Local Rules also allow for dismissal of a case for failure to follow the Local Rules.

"If any counsel, a party represented by counsel, or a self-represented litigant fails to comply with any of the requirements of these local rules, a judge, on motion of a party or on his or her motion, may (1) strike all or any part of any pleading of that party, (2) dismiss the action or proceeding or any part thereof, (3) enter a judgment by default against that party, or (4) impose other penalties of a lesser nature as otherwise provided by law, and may order that party and counsel to pay to the moving party reasonable expenses associated with the motion, including reasonable attorney fees." (Santa Barbara County Local Rule 102.)

"[Case Management Conferences] The Court conducts case management conferences in accordance with the case management rules set forth in CRC 3.720 et seq.

[Case Management Conference Statements] Unless expressly exempted by the Court, counsel or self-represented litigants are required to meet and confer as set forth in CRC 3.724 and to file case management conference statements no later than 15 calendar days prior to the CMC as set forth in CRC 3.725.

[Conduct of Case Management Conferences] At the CMC, the Court will evaluate the management of the case, and will consider and take appropriate action with respect to the matters specified in CRC 3.727. Counsel and self-represented litigants attending the CMC shall be thoroughly familiar with the case and able to inform the court of any aspect of the case that may assist the Court in its determinations for processing the case through settlement or trial.

[Alternative Dispute Resolution] At the CMC, the Court will consider and discuss alternative dispute resolution (ADR) methods and settlement procedures. Prior to the CMC, counsel shall have discussed ADR methods and settlement procedures with their clients, shall have authority to act on behalf of their clients with respect to ADR processes, and shall have entered this information on the case management statement. ADR processes include, as applicable, 'Case Management Alternative Dispute Resolution Early Settlement Session' (CMADRESS), 'CADRe Limited Mediation,' judicial arbitration, mediation, neutral evaluation, binding arbitration, judicial reference, and mandatory and voluntary settlement conferences, as provided in the Code of Civil Procedure, the CRC, and chapter 11 of these local rules. As appropriate, the Court may order the parties to participate in one or more ADR processes, make orders to facilitate ADR processes stipulated by the parties, and may make orders to ensure ADR processes have been timely completed." (Santa Barbara County Local Rule 1309, subd. (c).)

In addition to failing to comply with the Local Rules, plaintiff has failed to comply with the California Rules of Court.

"(a) The initial conference

In each case, the court must set an initial case management conference to review the case. At the conference, the court must review the case comprehensively and decide whether to assign the case to an alternative dispute resolution process, whether to set the case for trial, and whether to take action regarding any of the other matters identified in rules 3.727 and 3.728. The initial case management conference should generally be the first case management event conducted by court order in each case, except for orders to show cause.

(b) Notice of the initial conference

Notice of the date of the initial case management conference must be given to all parties no later than 45 days before the conference, unless otherwise ordered by the court. The court may provide by local rule for the time and manner of giving notice to the parties.

(c) Preparation for the conference

At the conference, counsel for each party and each self-represented party must appear in person or remotely as provided in rule 3.672; must be familiar with the case; and must be prepared to discuss and commit to the party's position on the issues listed in rules 3.724 and 3.727. (Cal. Rules of Court, rule 3.722 (a)-(c).)

"No later than 15 calendar days before the date set for the case management conference or review, each party must file a case management statement and serve it on all other parties in the case." (Cal. Rules of Court, rule 3.725(a).)

Plaintiff has failed to comply with statutorily imposed requirements, including: (1) Refusal to meet and confer with opposing counsel; (2) Failure to appear at two Case Management Conferences; (3) Failure to file Case Management Conference Statements; and (4) Failing to file oppositions or appear at law and motion hearings.

Plaintiff has been self-represented since January 28, 2026, and has not filed any documents since prior to that date. Further, by way of an ex parte application to be relieved as counsel, plaintiff's prior attorney declared that he had been unable to contact or communicate with plaintiff.

As plaintiff has abandoned her action, the case will be dismissed, without prejudice, as to all remaining defendants.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US